

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JAHI STONE,

Plaintiff,

-against-

**SECOND AMENDED
COMPLAINT**

THE CITY OF NEW YORK, SERGEANT DEMETRIA STARKS, shield # 29210, SERGEANT SUNIL SINGH, tax # 929179, POLICE OFFICER SELETA HUNT, tax # 929759, POLICE OFFICER JAMIE BLANDEBURGO, tax # 934498, SERGEANT ERIC DELMAN, tax # 922228, SERGEANT NIGEL PAUL, tax # 924732, POLICE OFFICER TROY PEACOCK, tax # 940553, POLICE OFFICER KRISTOFER ALLUA, tax # 936122, POLICE OFFICERS JOHN DOES 1-10,

CV 10 5944 (RRM) (JMA)

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. Plaintiff brings this civil rights action against the City of New York and several members of the New York City Police Department (“NYPD”). Plaintiff alleges that, on October 20, 2010, in the Canarsie section of Brooklyn, defendants violated his rights under 42 U.S.C. § 1983, the First, Fourth and Sixth Amendments to the United States Constitution and New York state law by retaliating against him for engaging in free speech, falsely arresting him for disorderly conduct and resisting arrest, using excessive force on him and making false allegations about him to prosecutors which deprived him of liberty. On October 21, 2010, the false criminal charges were adjourned in contemplation of dismissal. Plaintiff seeks compensatory and punitive damages, attorney’s fees and costs and such other and further relief as the court deems just and proper

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the First, Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claims of false arrest, assault and battery which form part of the same case and controversy as his federal claims under Article III of the United States Constitution.

4. With respect to plaintiff's state law claims, a notice of claim was duly filed with the City of New York within 30 days of the arrest of plaintiff, more than 30 days have elapsed since such filing and the City has not offered to settle plaintiff's state law claims.

5. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District, and because some or all of the defendants reside in this District.

PARTIES

6. Plaintiff is a resident of the State of New York who lives with his family in the Canarsie section of Brooklyn. Plaintiff graduated from high school and is employed at Nathan's restaurant. The arrest at issue in this case is plaintiff's first and only arrest.

7. The City of New York is a municipal corporation organized under the laws of the State of New York.

8. Sergeant Demetria Starks, Sergeant Sunil Singh, Police Officer Seleta Hunt, Police Officer Jamie Blandeburgo, Sergeant Eric Delman, Sergeant Nigel Paul, Police Officer Troy Peacock, Police Officer Kristofer Allua and John Does 1-10 are members of the

NYPD who were employed on October 20, 2010. Defendants were acting under color of state law and in their capacities as members of the NYPD at all relevant times. Defendants are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual capacities.

STATEMENT OF FACTS

9. On October 20, 2010, at approximately 3:15 p.m., plaintiff was standing on the sidewalk in front of his house located at 762 East 84th Street in the Canarsie section of Brooklyn talking with several friends.

10. At all relevant times, plaintiff did not commit a crime or violation, he was not wanted for a crime and no law enforcement officer observed him acting in a manner which gave rise to probable cause.

11. At the above time and place, Sergeant Demetria Starks, Sergeant Sunil Singh, Police Officer Seleta Hunt, Police Officer Jamie Blandeburgo, Sergeant Eric Delman, Sergeant Nigel Paul, Police Officer Troy Peacock, Police Officer Kristofer Allua and other officers (“defendants”) approached the group.

12. Some of the defendants verbally abused members of the group.

13. Some of the defendants attacked plaintiff’s friend Sean Mendez and, among other things, slammed Mendez’s face onto a car windshield and brought him violently to the ground.

14. Plaintiff engaged in free speech by asking defendants the reason for the harassment and the attack on Mendez.

15. Some of the defendants -- while others watched -- responding by telling plaintiff to “shut up,” by tackling plaintiff and bringing him to the ground in a violent manner and by intentionally handcuffing plaintiff excessively tight causing pain, bruising and swelling.

16. The defendants, acting in concert, then arrested plaintiff for no reason, put him into a van and drove him to the 69th Precinct.

17. While plaintiff was confined in the cell, Sergeant Starks, plaintiff’s designated “arresting officer,” misrepresented in police reports that she observed plaintiff commit the offenses disorderly conduct and resisting arrest at 762 East 84th Street. Specifically, Starks falsely alleged that plaintiff obstructed pedestrian traffic on the sidewalk, criticized the police in a loud manner causing people in the area to take notice and flailed his arms in an attempt to avoid being handcuffed.

18. The other defendants knew that Sergeant Starks was creating police reports containing these false allegations, but they failed to intervene to protect plaintiff by, for example, reporting the matter to a supervisor.

19. At approximately 10:30 p.m., officers took plaintiff to Brooklyn Central Booking.

20. Plaintiff was held in cells in Brooklyn Central Booking which were severely overcrowded, extremely cold, filthy and infested with roaches. The toilets were covered in feces, urine and other types of human discharge and there were no beds or cots for plaintiff and the other detainees to sleep on.

21. While plaintiff was confined in Brooklyn Central Booking, Sergeant Starks misrepresented to the Kings County District Attorney’s Office that she observed plaintiff commit the offenses disorderly conduct and resisting arrest at 762 East 84th Street. Specifically,

Starks falsely alleged that plaintiff obstructed pedestrian traffic on the sidewalk, criticized the police in a loud manner causing people in the area to take notice and flailed his arms in an attempt to avoid being handcuffed.

22. The other defendants knew that Sergeant Starks was commencing a bogus prosecution against plaintiff, but they failed to intervene to protect plaintiff by, for example, reporting the matter to an NYPD supervisor or to the District Attorney's Office.

23. Sergeant Starks swore to the accuracy of a criminal court complaint that contained the false allegations.

24. Defendants' purposes in commencing a bogus prosecution against plaintiff was to have plaintiff convicted of and punished for a crime he did not commit, to obtain overtime compensation and to increase their number of arrests.

25. On October 21, at approximately 11:30 a.m., plaintiff was arraigned in Criminal Court, Kings County on charges of disorderly conduct and resisting arrest.

26. During the arraignment, the false charges were adjourned in contemplation of dismissal.

27. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was incarcerated for numerous hours and suffered emotional distress, mental anguish, fear, anxiety, damage to reputation, pain, swelling and bruising.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

28. Plaintiff repeats the foregoing allegations.

29. At all relevant times, including October 20, 2010, plaintiff did not commit a crime or violation, he was not wanted for a crime and no law enforcement officer observed him acting in a manner which gave rise to probable cause.

30. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

31. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

SECOND CLAIM

(FALSE ARREST UNDER STATE LAW)

32. Plaintiff repeats the foregoing allegations.

33. At all relevant times, including October 20, 2010, plaintiff did not commit a crime or violation, he was not wanted for a crime and no law enforcement officer observed him acting in a manner which gave rise to probable cause.

34. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

35. Accordingly, defendants are liable to plaintiff under New York state law for false arrest.

THIRD CLAIM

(UNREASONABLE FORCE UNDER FEDERAL LAW)

36. Plaintiff repeats the foregoing allegations.

37. Some of the defendants -- while others watched -- tackled a compliant plaintiff and brought him to the ground in a violent manner and intentionally handcuffed him excessively tight.

38. Defendant's use of force upon plaintiff or the refusal to intervene to prevent the use of force on him was objectively unreasonable and caused plaintiff pain, bruising and swelling.

39. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for unreasonable force.

FOURTH CLAIM

(VIOLATING RIGHT TO FREE SPEECH UNDER FEDERAL LAW)

40. Plaintiff repeats the foregoing allegations.

41. Plaintiff exercised free speech during the incident by, among other things, peacefully asking defendants the reason why they were harassing him and his friends and attacking Sean Mendez.

42. Plaintiff's use of free speech was a motivating factor in defendants' decisions to arrest, use force on and attempt to prosecute him.

43. Accordingly, defendants are liable to plaintiff under the First Amendment for violating plaintiff's right to free speech.

FIFTH CLAIM

(ASSAULT UNDER STATE LAW)

44. Plaintiff repeats the foregoing allegations.

45. Defendants' use of force upon plaintiff, as described herein, placed plaintiff in fear of imminent harmful and offensive physical contact that caused injury to plaintiff.

46. Accordingly, defendants are liable to plaintiff under New York state law for assault.

SIXTH CLAIM

(BATTERY UNDER STATE LAW)

47. Plaintiff repeats the foregoing allegations.

48. Defendants' use of force upon plaintiff, as described herein, were offensive and nonconsensual physical contacts that caused injury to plaintiff.

49. Accordingly, defendants are liable to plaintiff under New York state law for battery.

SEVENTH CLAIM

(FABRICATION OF EVIDENCE AND DENIAL OF A FAIR TRIAL)

50. Plaintiff repeats the foregoing allegations.

51. Sergeant Starks' false allegations about plaintiff to the District Attorney's Office and the other defendants' failure to intervene to protect plaintiff resulted in plaintiff being deprived of liberty because he was held in jail until his arraignment.

52. Accordingly, defendants are liable to plaintiff under the Sixth Amendment for fabrication of evidence and for denying plaintiff a fair trial.

EIGHTH CLAIM

(STATE LAW RESPONDEAT SUPERIOR CLAIM AGAINST CITY OF NEW YORK)

53. Plaintiff repeats the foregoing allegations.

54. Defendants and other officers acted within the scope of their employment as a New York City Police Officers when they falsely arrested, assaulted and battered plaintiff.

55. Accordingly, the City of New York is vicariously liable to plaintiff under New York state law for false arrest, assault and battery.

NINTH CLAIM

(*MONELL* CLAIM AGAINST THE CITY OF NEW YORK)

56. Plaintiff repeats the foregoing allegations.

57. The City of New York is a “person” within the meaning of 42 U.S.C. § 1983.

58. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

59. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

60. In fact, several members of the NYPD have been arrested and convicted of crimes for making false allegations about arrestees and for corruption.

61. For example, former NYPD Commissioner Bernard Kerik was convicted of corruption related crimes and served time in federal prison.

62. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the defendants and other officers like them and improperly retained and utilized them.

63. The City’s failure to act resulted in the violation of plaintiff’s constitutional rights as described herein.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

a. Compensatory damages in an amount to be determined by a jury;

- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: July 12, 2011
Brooklyn, New York

/s/

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